

**Court No. - 34**

**Case :-** WRIT - C No. - 21811 of 2020

**Petitioner :-** Shiv Shankar

**Respondent :-** State Of U.P. And 3 Others

**Counsel for Petitioner :-** Chandra Narayan Mishra

**Counsel for Respondent :-** C.S.C.,Baleshwar Chaturvedi

**Hon'ble Mrs. Sunita Agarwal,J.**

**Hon'ble Jayant Banerji,J.**

Heard learned counsel for the parties and perused the record.

By means of the present petition, the petitioner herein is seeking for a writ of mandamus directing the respondents to restore his electricity connection.

The contention of the petitioner is that in view of the decision of this Court in Writ C No.3243 of 2020, the petitioner moved a proper representation before the respondent no.4 in accordance with the Clause 6.5 of the U.P. Electricity Supply Code, 2005, raising dispute against the bill raised by the respondent. The said dispute has yet not been decided and the electricity connection of the petitioner has not been restored.

Sri Baleshwar Chaturvedi, learned Advocate for the respondent, however, states that prayer for restoration of the electricity connection cannot be entertained till outstanding dues towards the electricity bills are cleared by the petitioner.

Considering the above, without expressing opinion as to the merits of the case of the petitioner, we ***dispose of*** the present petition with the observation that the petitioner has disputed the electricity bill before the respondent no.4, i.e. the Executive Engineer, Dakshinanchal Vidyut Vitran Khand, Kanpur Nagar by moving a proper application in accordance with the order dated 01.10.2019. The respondent no.4 would be under obligation to take an expeditious decision in accordance with law.

However, in case there is no such dispute, the connection can only be restored till the petitioner pays the outstanding dues after its determination.

**Order Date :-** 10.12.2020

P Kesari